

GUARDIANTEXT EVIDENCE REPORT

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Threat Summary

Threat Level: DANGEROUS

Confidence: 91.0%

Risk Score: 88.5 / 100

Summary: Detected threat indicators: stalking

Original Message

I know where you work

Risk Factors

- stalking [high] — Repeated monitoring and threats

Legal References

- IPC 354D — Stalking

Recommended Actions

- Document evidence
- File police complaint

Appendix: IPC Section 354D (Stalking)

1. Legal Provision

Stalking is recognized as a criminal offense under Section 354D of the Indian Penal Code (IPC), introduced by the Criminal Law (Amendment) Act, 2013.

2. Key Elements Of IPC Section 354D: Stalking

2.1. Definition Of Stalking

Any man who follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or monitors the use by a woman of the internet, email or any other form of electronic communication, commits the offence of stalking.

2.2. Exceptions To Stalking

Exceptions include actions taken for the purpose of preventing or detecting crime by a person authorized by the State, actions pursued under any law or to comply with any condition or requirement imposed by any person under any law, or where conduct was reasonable and justified in the particular circumstances.

2.3. Punishments For Stalking

First conviction: Imprisonment up to 3 years and a fine. Second or subsequent conviction: Imprisonment up to 5 years and a fine. The offense is cognizable and bailable for the first offense, and non-bailable for subsequent offenses.

3. Societal Context Of Stalking

3.1. Impact On Victims

Victims often experience severe psychological distress, fear, anxiety, depression, and restricted freedom of movement. It significantly impacts their personal and professional lives.

3.2. Role Of Technology

Cyberstalking has exacerbated the issue, allowing perpetrators to harass victims anonymously and persistently across digital platforms, violating privacy on a massive scale.

4. Key Details: IPC Section 354D

The section specifically protects women from men. It covers both physical following and digital monitoring (cyberstalking).

5. Case Laws

5.1. State vs . Ashok Kumar

Highlighted the necessity of proving the 'repeated' nature of contact and the clear disinterest shown by the victim to establish stalking.

5.2. Singaraju Somasekhar, vs The State Of Telangana

Emphasized that electronic monitoring and cyberstalking are strictly punishable under 354D, acknowledging the severe mental trauma inflicted through digital mediums.

6. Challenges In Implementation

Challenges include underreporting due to societal stigma, difficulty in gathering digital evidence, lack of awareness, and the bailable nature of the first offense which may embolden offenders.

7. Conclusion

Section 354D is a crucial legal framework protecting women from persistent harassment and privacy violations, recognizing both physical and digital forms of stalking as severe offenses.

8. FAQs

8.1. 1. What are the penalties for stalking?

Up to 3 years imprisonment and fine for first offense; up to 5 years and fine for subsequent offenses.

8.2. 2. How does technology impact stalking cases?

It enables cyberstalking (monitoring emails, social media), complicating evidence collection but explicitly covered under the IPC.

8.3. 3. What challenges hinder the enforcement of Section 354D?

Social stigma, fear of retaliation, evidence preservation issues, and systemic delays in cyber forensics.

9. References

- Indian Penal Code, 1860 (Section 354D)

- Information Technology Act, 2000